

Superannuation benefits in certain cases of premature retirement.

2. Subsections (2) and (3) of section thirty-four of the Superannuation Act, 1949 (which provide that where the employment of a person as a civil servant is terminated at his request after he has attained the age of fifty years but before the retiring age a superannuation allowance and an additional allowance may be granted to that person or, in certain circumstances, a gratuity may be granted to his legal personal representatives) shall apply to a person who is or when last a civil servant was a member of Her Majesty's foreign service of a grade not lower than that of second secretary as they apply to any other person who is or was a civil servant; and accordingly in subsection (4) of that section (which excludes the application of that section in such a case) for the words "Nothing in this section applies" there shall be substituted the words "Subsection (1) of this section shall not apply".

Expenses.

3. There shall be paid out of moneys provided by Parliament any increase attributable to the provisions of this Act in the sums which under any other Act are payable out of moneys so provided.

Citation.

4.—(1) This Act may be cited as the Foreign Service Act, 1960.

5 & 6 Eliz. 2.
c. 37.

(2) This Act, the Superannuation Acts, 1834 to 1950, and the Superannuation Act, 1957, may be cited together as the Superannuation Acts, 1834 to 1960.

CHAPTER 12

ARRANGEMENT OF SECTIONS

Section

1. Enforcement of payment of rates.
2. Application for warrant of distress.
3. Statement of case on application for warrant.
4. Execution of warrant of distress.
5. Costs of obtaining warrant of distress.
6. Charges for levying distress.
7. Imprisonment in default of sufficiency of distress.
8. Inquiry as to means before issue of warrant of commitment.
9. Attendance of defaulter for purposes of inquiry.
10. Abatement of proceedings on payment of rate and costs.
11. Jurisdiction of justices.
12. Service and execution of process.
13. Meaning of "rate" and "charges".
14. Application to City of London.
15. Repeal and savings.
16. Short title, extent and commencement.

Schedules:

- First Schedule—Forms of Documents.
Second Schedule—Repeals.

An Act to consolidate, with corrections and improvements made under the Consolidation of Enactments (Procedure) Act, 1949, certain enactments relating to the recovery of rates. [22nd March, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. If any person fails to pay any sum legally assessed on and due from him in respect of a rate for seven days after it has been legally demanded of him, the payment of that sum may, subject to and in accordance with the provisions of this Act, be enforced by distress and sale of his goods and chattels under warrant issued by a magistrates' court; and, if there is insufficient distress, he may be liable to imprisonment under the provisions of this Act in that behalf. Enforcement of payment of rates.

2.—(1) The proceedings for the issue of a warrant of distress under this Act may be instituted by making complaint before a justice of the peace and applying for a summons requiring the person named in the complaint to appear before a magistrates' court to show why he has not paid the rate specified in the complaint. Application for warrant of distress.

(2) The forms of complaint and summons in the First Schedule to this Act, or forms to the like effect, may be used in proceedings under this Act.

(3) If the person summoned fails to appear in obedience to the summons and it is proved to the magistrates' court on oath, or in such other manner as may be prescribed by rules under section fifteen of the Justices of the Peace Act, 1949, that the summons was duly served a reasonable time before the time appointed by the summons for his appearance the magistrates' court may, if it thinks fit, proceed in his absence as if he had appeared in person in obedience to the summons.

3. The justices may state a case under the Magistrates' Courts Act, 1952, when called upon to issue a warrant of distress under this Act. Statement of case on application for warrant.

4.—(1) A warrant of distress under this Act may be directed to the rating authority, to the constables of the police area in which the warrant is issued and to such other persons, if any, as the magistrates' court issuing the warrant may think fit, and the warrant shall authorise the persons to whom it is directed to levy the amount which the person against whom the warrant is issued is liable to pay by distress and sale of his goods and chattels. Execution of warrant of distress.

(2) The foregoing provisions of this Act shall not affect the operation of any enactment which protects goods and chattels of any class from distress or which restricts in any other manner the right to obtain a warrant of distress or its execution.

(3) A warrant of distress under this Act may be executed anywhere in England or Wales by any person to whom it is directed or by any constable acting within his police area.

(4) The forms of warrant of distress in the First Schedule to this Act, or forms to the like effect, may be used in proceedings under this Act and, to save expense, one warrant of distress may be issued against any number of persons in default, as in the second of the said forms.

(5) Any person aggrieved by a distress under this Act for a rate may appeal to the next court of quarter sessions for the area where the rate was made and the appeal shall be heard and finally determined in such sessions.

(6) A distress under this Act shall not be deemed to be unlawful on account of any defect or want of form in the rate or assessment or in the warrant of distress and no person making the distress shall be deemed a trespasser on that account.

(7) No person making a distress under this Act shall be deemed to be a trespasser from the beginning on account of any subsequent irregularity in the execution of the warrant of distress, but a person who has sustained special damage by reason of the irregularity may recover full satisfaction for the special damage (and no more) by proceedings in trespass or otherwise.

Costs of
obtaining
warrant of
distress.

5.—(1) The magistrates' court issuing a warrant of distress under this Act may, if it thinks fit, include in the warrant an order that such sum as it may deem reasonable for the costs incurred in obtaining the warrant shall be levied under the warrant.

(2) This section shall have effect subject to the restriction on the allowance of costs imposed by the Poor Rates Recovery Act, 1862 (which, in a case where several rates of the same or different kinds are due from the same person, authorises their inclusion in one warrant of distress or other document and directs that no costs be allowed if several such documents are used where one would be enough).

Charges for
levying
distress.

6.—(1) The Minister of Housing and Local Government may make an order regulating the charges in respect of, and incidental to, the levying of distress for rates; and a warrant of distress under this Act may provide that the charges attending the distress, to the amount authorised by the order, shall be levied under the warrant.

(2) Without prejudice to the generality of the foregoing subsection, an order under this section may include provision as to charges in cases where, in pursuance of an agreement in that behalf, the goods distrained are not removed from the premises where the distress is levied, whether any person is left in physical possession of the goods or not.

(3) An order under this section may contain such incidental and supplementary provisions (including provisions as to the settlement of disputes with respect to any charges to which the order relates) as may appear to the Minister to be necessary or expedient for the purposes of the order.

(4) Any order made under this section may be varied or revoked by a subsequent order thereunder and the power of making orders under this section shall be exercisable by statutory instrument.

7.—(1) If the person charged with the execution of a warrant of distress for levying a sum to which some person has been rated makes a return to the magistrates' court that he could find no goods or chattels (or no sufficient goods or chattels) on which to levy the sums directed to be levied under the warrant on that person's goods and chattels a magistrates' court may, if it thinks fit, and subject to the provisions of the next following section, issue a warrant of commitment against the said person. Imprisonment in default of sufficiency of distress.

(2) A warrant of commitment under this section may be directed to the rating authority, to the constables of the police area in which the warrant is issued and to such other persons, if any, as the magistrates' court issuing the warrant may think fit; and the warrant may be executed anywhere in England or Wales by any person to whom it is directed or by any constable acting within his police area.

(3) The warrant of commitment shall be made not only for non-payment of the sum alleged to be due for rates but also for—

- (a) such costs incurred in obtaining the warrant of distress as may have been included in the warrant of distress,
- (b) the charges attending the distress, and
- (c) the costs of commitment,

and the said costs and charges shall be stated in the warrant of commitment.

The form of warrant of commitment in the First Schedule to this Act or a form to the like effect may be used in proceedings under this Act.

(4) The order in the warrant of commitment shall be that the said person be imprisoned for a time therein specified but not exceeding three months, unless the sums mentioned in the warrant shall be sooner paid; but if payment is made in accordance with rules under section fifteen of the Justices of the Peace

Act, 1949, of part of the said sums mentioned in the warrant, the period of imprisonment shall be reduced by such number of days as bears to the total number of days in the period specified in the warrant less one day the same proportion as the amount so paid bears to so much of the said sums as was due at the time when the period of imprisonment was imposed.

In calculating the reduction required under this subsection any fraction of a day shall be left out of account.

(5) A single warrant of commitment shall not be issued under this section against more than one person.

Inquiry as to means before issue of warrant of commitment.

8.—(1) The last foregoing section shall have effect subject to and in accordance with the following provisions:—

(a) on the application for the issue of a warrant for the commitment of any person, the magistrates' court shall make inquiry in his presence as to whether his failure to pay the sum to which he was rated and in respect of which the warrant of distress was issued was due either to his wilful refusal or to his culpable neglect:

(b) if the magistrates' court is of opinion that the failure of the said person to pay the said sum was not due either to his wilful refusal or to his culpable neglect, it shall not issue the warrant.

(2) Where on the application no warrant of commitment is issued, the magistrates' court may remit the payment of any sum to which the application relates, or of any part of that sum.

(3) Where on the application no warrant of commitment is issued, the application may be renewed, except so far as regards any sum remitted under the last foregoing subsection, on the ground that the circumstances of the person to whom the application relates have changed.

(4) A statement in writing to the effect that wages of any amount have been paid to a person during any period, purporting to be signed by or on behalf of his employer, shall be evidence of the facts therein stated in any proceedings taken before a magistrates' court under this Act against that person.

Attendance of defaulter for purposes of inquiry.

9.—(1) For the purpose of enabling inquiry to be made in his presence as to the conduct and means of a person in relation to whom a return of insufficiency of distress has been made as mentioned in subsection (1) of section seven of this Act, a justice of the peace having jurisdiction in the petty sessions area in which the return is made may at any time issue a summons to that person to appear before a magistrates' court having jurisdiction under this Act and, if he does not appear in obedience to the summons, may issue a warrant for his arrest or, without issuing a summons, issue in the first instance a warrant for his arrest.

(2) Where a warrant is issued under this section, then, unless the sum in respect of which the warrant is issued is sooner paid to the police officer holding the warrant, the warrant may be executed in the like manner, and the like proceedings may be taken for the execution thereof, in any part of the United Kingdom, as if it had been a warrant of arrest issued under section fifteen of the Magistrates' Courts Act, 1952.

10.—(1) If after proceedings have been taken under this Act against a person to compel payment of any sum for rates, but not after he has been imprisoned in default of a sufficiency of distress, that person pays or tenders to the rating authority, or to some other person authorised to receive the rates, the sum sought to be recovered together with the amount of all costs and charges up to that time incurred in the proceedings, the rating authority or other person shall accept the amount so paid or tendered and no further proceedings shall be taken for the recovery thereof.

Abatement of proceedings on payment of rate and costs.

(2) If after the issue of a warrant of distress under this Act for a rate the person against whom it is issued tenders the amount of the rate before any levy is made, he shall nonetheless be liable to pay the cost of the warrant and of any person for his attendance to make the levy.

11.—(1) Subject to the provisions of subsection (1) of section nine of this Act, justices of the peace may act under the provisions of this Act as respects a rate if they are justices appointed for an area which comprises the rating area.

Jurisdiction of justices.

(2) Subject to any enactment in any other Act authorising a stipendiary magistrate or other person to act by himself, a magistrates' court shall not hear a summons for the issue of a warrant of distress under this Act or entertain an application for a warrant of commitment under this Act or hold an inquiry as to means on such an application, except when composed of at least two justices.

12.—(1) Any summons authorised to be served under this Act may be served either:—

Service and execution of process.

- (a) by delivering it to the person on whom it is to be served, or
- (b) by leaving it at the usual or last known place of abode of that person, or in the case of a company at its registered office, or
- (c) by forwarding it by post addressed to that person at his usual or last known place of abode, or in the case of a company at its registered office, or
- (d) by delivering it to some person on the premises to which it relates, or

(e) without prejudice to the foregoing provisions of this subsection, where the hereditament to which the document relates is a place of business of the person on whom it is to be served, by leaving it at, or forwarding it by post addressed to that person at, the said place of business.

(2) Any summons authorised to be served under this Act on any public authority shall be deemed to be duly served if delivered at or sent by post to the office of the authority addressed to that authority or to their clerk.

(3) The foregoing provisions of this section shall be without prejudice to the application to the service of documents under this Act of any rules made under section fifteen of the Justices of the Peace Act, 1949, and the provisions of this Act as to the persons by whom process may be executed shall not affect the operation of section twelve of the Metropolitan Police Act, 1839 (which requires that all summons and warrants issued by a magistrate in the metropolitan police district shall be served and executed by a constable of the metropolitan police force).

Meaning of
"rate" and
"charges."

13.—(1) In this Act, unless the context otherwise requires, the expression "rate" means the general rate and, in relation to the Inner Temple and the Middle Temple, any rate in the nature of a general rate; and "rated" has a corresponding meaning.

(2) In this Act the expression "charges" includes fees and expenses.

Application to
City of
London.

14. In relation to rates levied in the City of London, this Act shall have effect with the following modifications, that is to say—

(a) the expression "rate" shall include the poor rate and the St. Botolph tithe rate, that is to say any rate made and levied by the common council or the corporation of the city under the powers transferred to them by the City of London (Tithes and Rates) Act, 1910; and "rated" shall have a corresponding meaning;

(b) the reference in section one of this Act to a sum legally assessed on and due from a person in respect of a rate shall include a reference to a sum a person is liable to pay in respect of any rate to which section one hundred and seventy-seven of the City of London Sewers Act, 1848, applies, and references in other provisions of this Act to a sum to which a person has been rated or to the rating or assessment of a person shall be construed accordingly.

15.—(1) The enactments set out in the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule: Repeal and savings.

Provided that nothing in this subsection shall affect the operation of the said enactments in relation to proceedings in respect of any rate made before the commencement of this Act.

(2) In so far as any order made under section thirteen of the Rating and Valuation (Miscellaneous Provisions) Act, 1955, and in force at the commencement of this Act could have been made under section six of this Act, it shall not be invalidated by the repeal of the said section thirteen effected by the foregoing subsection, but shall have effect as if it had been made under the said section six.

(3) Any document referring to an enactment repealed by this Act shall be construed as referring to the corresponding provision of this Act.

(4) Without prejudice to the generality of the last foregoing subsection,—

(a) any enactment which refers to the procedure for enforcing payment of a poor rate, or to any part of that procedure, shall be construed as referring to the procedure prescribed by this Act, or to the corresponding part of that procedure, and

(b) the reference in Rule 45 of the Magistrates' Courts Rules, 1952, to subsection (2) of section sixty-seven of the Magistrates' Courts Act, 1952, shall include a reference to subsection (4) of section seven of this Act.

(5) For the purposes of subsection (3) of section one hundred and twenty-two of the Magistrates' Courts Act, 1952 (under which enactments passed before the sixteenth day of December, nineteen hundred and forty-nine, may be amended by rules governing the procedure of magistrates' courts), this Act shall be deemed to have been passed before the said date.

(6) The provisions of this section shall be without prejudice to the general application to this Act of section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals).

16.—(1) This Act may be cited as the Distress for Rates Act, 1960. Short title, extent and commencement.

(2) This Act (except subsection (2) of section nine) shall not extend to Scotland or Northern Ireland.

(3) This Act shall come into force on the first day of April, nineteen hundred and sixty, but shall not apply to proceedings in respect of any rate made before that date.

C. (1)

1ST SCH.

Form of Distress Warrant

In the [county of _____], Petty Sessional Division
of _____].

To [insert name of rating authority] and to each and all of the constables of _____.

On _____, 19____, complaint was made
by _____ that A.B., being a person duly rated
and assessed in a rate made on _____, 19____, in the sum of
£_____, had not paid that sum or any part thereof:

And on _____, 19____, at
the complainants [and the said A.B.] have appeared before the
Magistrates' Court sitting at _____
[but the said A.B. has not so appeared and it has been satisfactorily
proved that he was duly served with a summons so to appear]:

And it being now duly proved to the Court on oath [in the presence of the said A.B.] that the said A.B. was assessed at the sum of £ in a rate dated and duly made and published and that the said sum has been duly demanded from the said A.B. but that he has not paid it:

And the said A.B. not showing any sufficient cause for not paying the said sum:

You are hereby commanded forthwith to make distress of the goods and chattels of the said A.B. and if within [five] days after the making of the distress the sums set out below (together with the lawful charges for taking and keeping the said distress) are not paid, to sell the said goods and chattels distrained by you and out of the proceeds of the sale to retain the said sums set out below, together with the lawful charges for taking, keeping and selling the said distress, and paying over any balance on demand to the said A.B.; and if no such distress can be found you are to certify that fact to the Court.

Dated the day of , 19 .

J.P.

**Justice of the Peace for the
[county] first above mentioned.**

Particulars

	£	s.	d.
1. Sum due for rate			
2. For costs of obtaining warrant of distress			
Total			

1st SCH.

C. (2)

Form of Distress Warrant against several Ratepayers

In the [county of _____], Petty Sessional Division
of _____].

To [Insert name of rating authority] and to each and all of the
constables of _____

On _____, 19____, complaint was made
by _____
that the persons whose names are given in the particulars at the
foot of this warrant, being persons duly rated and assessed in the
respective amounts set out in those particulars by rates made on the
dates there set out had not paid those sums or any part thereof:

And on _____, 19____,
at _____,
the complainants and [Names of parties who have appeared] have
appeared before the Magistrates' Court sitting at _____
[but the [other] persons whose names are given in the particulars at
the foot of this warrant have not so appeared and it has been
satisfactorily proved to the Court that the said persons not
so appearing have been duly served with a summons in that behalf]:

And it being now duly proved to the Court on oath in the presence of
the parties so appearing that the said persons named in the said
particulars were assessed at the respective amounts there set out
by the rates made as there specified and duly published and that
those sums have been duly demanded from the said persons respec-
tively but that they have not paid them or any part thereof:

And the said persons not showing any sufficient cause for not
paying the said sums:

You are hereby commanded forthwith to make distress of the
goods and chattels of the said persons and if within [five] days
after the making of the distress the respective sums set out in the
said particulars (including in each case the sums for costs there
specified and the lawful charges for taking and keeping the said
distress) are not paid, to sell the goods and chattels of the parties
in default distrained by you and out of the proceeds of sale to
retain the respective sums so specified, together with the lawful
charges for taking, keeping and selling the distress, and in each
case paying over any balance on demand to the person whose
goods and chattels have been so sold; and if no such distress can
be found in the case of any of the said persons you are to certify
that fact to the Court.

Dated the _____ day of _____, 19____.

J.P.

Justice of the Peace for the
[county] first above mentioned.

Particulars

1ST SCH.

Name of Ratepayer	Residence	Rate dated	Arrears under rate dated	Costs	Total
		£ s. d.	£ s. d.	£ s. d.	£ s. d.

D

Form of Warrant of Commitment in default of Distress

In the [county of _____], Petty Sessional Division
of _____].

To each and all of the constables of
and to the Governor of Her Majesty's prison at

On _____, 19____, complaint was made
by _____ that A.B., being a person
duly rated and assessed in a rate made on _____ 19____,
in the sum of £ _____, had not paid that sum or any part
thereof :

And on _____, 19____, at
the complainants [and the said A.B.] appeared before the Magistrates'
Court sitting at _____
[but the said A.B. did not appear before the Court and it was satis-
factorily proved that he was duly served with a summons so to
appear]:

And it was duly proved to the Court on oath [in the presence of the said A.B.] that the said A.B. was assessed at the sum of £ by a rate dated and duly made and published, and that the said sum had been duly demanded from the said A.B., but that he had not paid it. And the said A.B. not showing any sufficient cause for not paying the said sum, the Court issued a warrant for commanding them to levy the said sum, together with the sum for the costs of obtaining that warrant set out below, by distress and sale of the goods and chattels of the said A.B.:

And it appearing that no sufficient distress on which to levy the said sums could be found:

1ST SCH. And inquiry having been made by the competent Court in the presence of the said A.B. as to whether his failure to pay the said sums was due either to his wilful refusal or to his culpable neglect, and that Court not being of opinion that the failure of the said A.B. was not so due:

It is ordered that the said A.B. be committed to prison for unless the said sums together with the further costs and charges set out below are sooner paid: *

You, the said constables, are hereby required to take the said A.B., and convey him to the Governor of Her Majesty's Prison at ; and you, the said Governor, to receive the said A.B. into custody and imprison him for [state period] or until he be sooner discharged in due course of law.

Dated the day of , 19 .

J.P.
Justice of the Peace for the
[county] first above mentioned.

Particulars						£	s.	d.
1. Sum due for rate	...	...	...	...	...			
2. For costs of obtaining warrant of distress	...			...	...			
3. Sum payable for the fees, charges and expenses attending the distress	...	...	...	...	...			
4. Costs of commitment	...	...	...	...	...			
Total					...			

* NOTE: The period of detention will be reduced as provided by subsection (4) of section seven of the Distress for Rates Act, 1960, if part payment is made of the sum due.

Section 15.

SECOND SCHEDULE

REPEALS

Session and Chapter	Short Title	Extent of Repeal
43 & 44 Eliz. 1 c. 2.	The Poor Relief Act, 1601	Sections two and seven.
17 Geo. 2. c. 38	The Poor Relief Act, 1743	Sections seven and eight.
54 Geo. 3. c. 170.	The Poor Relief Act, 1814	In section twelve the words "rate for the relief of the poor" and the words "or highway cess".
2 & 3 Vict. c. 71.	The Metropolitan Police Courts Act, 1839.	Section fifty-one so far as relates to rates within the meaning of this Act.

Session and Chapter	Short Title	Extent of Repeal
11 & 12 Vict. c. clxiii.	The City of London Sewers Act, 1848.	Sections one hundred and ninety-four and one hundred and ninety-six.
12 & 13 Vict. c. 14.	The Distress for Rates Act, 1849.	The whole Act.
12 & 13 Vict. c. 64.	The Poor Law (Justices Jurisdiction) Act, 1849.	The whole Act.
13 & 14 Vict. c. 57.	The Vestries Act, 1850.	In section seven, except as it applies to church rates, the words from "To prepare and issue the necessary process" to "such arrears".
15 & 16 Vict. c. 38.	The Justices Jurisdiction Act, 1852.	The whole Act.
25 & 26 Vict. c. 102.	The Metropolis Management Amendment Act, 1862.	Section eighteen.
39 & 40 Vict. c. 61.	The Divided Parishes and Poor Law Amendment Act, 1876.	Sections thirty-one, forty-four and forty-five.
15 & 16 Geo. 5 c. 90.	The Rating and Valuation Act, 1925.	Section fifty-nine so far as relates to any document required or authorised to be sent or served under or for the purposes of this Act.
25 & 26 Geo. 5. c. 46.	The Money Payments (Justices Procedure) Act, 1935.	Sections ten and eleven. In subsection (4) of section sixteen the words "(except subsection (2) of section eleven thereof)".
11 & 12 Geo. 6. c. 26.	The Local Government Act, 1948.	Subsection (1) of section sixty-three so far as relates to any document required or authorised to be sent or served under or for the purposes of this Act.
15 & 16 Geo. 6. & 1 Eliz. 2. c. 55.	The Magistrates' Courts Act, 1952.	In section one hundred and two, subsection (2) so far as it applies to warrants of distress and warrants of commitment for rates within the meaning of this Act. In section one hundred and twenty-eight, subsections (1) and (2) so far as relates to proceedings for the recovery of rates within the meaning of this Act. In the Fifth Schedule the amendment of the Money Payments (Justices Procedure) Act, 1935.

2ND SCH.

Session and Chapter	Short Title	Extent of Repeal
4 & 5 Eliz. 2. c. 9.	The Rating and Valuation (Miscellaneous Provisions) Act, 1955.	In section thirteen, subsections (1), (2) and (3) and in subsection (4) the words "on the coming into operation of an order under this section" and the words from "and in section one" to the end of the section.
7 & 8 Eliz. 2. c. xlix.	The City of London (Various Powers) Act, 1959.	Sections eleven to sixteen. The Schedule.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Metropolitan Police Courts Act, 1839... ..	2 & 3 Vict. c. 71.
City of London Sewers Act, 1848	11 & 12 Vict. c. clxiii.
Poor Rates Recovery Act, 1862	25 & 26 Vict. c. 82.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
City of London (Tithes and Rates) Act, 1910 ...	10 Edw. 7 & 1 Geo. 5. c. xxx.
Justices of the Peace Act, 1949	12, 13 & 14 Geo. 6. c. 101.
Magistrates' Courts Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 55.
Rating and Valuation (Miscellaneous Provisions) Act, 1955.	4 & 5 Eliz. 2. c. 9.